

2013

M B A

1st Semester Examination

BUSINESS LEGISLATION

PAPER—MBA-105

Full Marks : 100

Time : 3 Hours

The figures in the right-hand margin indicate full marks.

Candidates are required to give their answers in their own words as far as practicable.

Illustrate the answers wherever necessary.

Write the answers to Questions of each Half in separate books.

(First Half)

(Marks : 50)

1. Answer any four questions : **5×4**

(a) Discuss the necessity of Business Law.

(b) Distinguish between Void and Illegal agreement.

(Turn Over)

- (c) Who are holder on due course ? Discuss their rights.
- (d) Define express offer and implied offer with examples.
- (e) Explain the term negotiable instrument.
- (f) Mere mental acceptance is no acceptance in the eye of law — explain.

2. Answer any two questions : 10×2

- (a) Define agent and principal. How agency is created ? State with examples.
- (b) Discuss the remedies for breach of contract.
- (c) Discuss the implied conditions in a contract for sale by sample.

[Internal Assessment : 10 Marks]

(Second Half)

(Marks : 50)

3. Answer any four questions :**5×4**

- (a) What are the statutory duties of a partner in a partnership firm ?
- (b) Highlight in brief the functions of State Consumer Protection Council.
- (c) What do you mean by identity theft ? If it happens, what is the punishment ?
- (d) State the Registration Procedure of the Copyright Act 1957.
- (e) Write about the term of a Trade Mark like Duration, Renewal, Removal and Restoration.
- (f) Write about the Special Provisions for young persons as per W.B. Shops and Establishments Act, 1963.

4. Answer any *two* questions : 10×2

(a) State the Composition and Jurisdiction of the District Forum as per the Consumer Protection Act, 1986.

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(b) Is registration compulsory in a partnership business ?
What are the effects of non-registration ? 2+8

(c) Write briefly on the following (any *two*) : 5×2

(i) Patent Office ;

(ii) Wages for overtime work ;

(iii) Cyber Cafe ;

(iv) Unfair Trade Practice ;

(v) Copyright Board.

[Internal Assessment : 10 Marks]
